**COMMONWEALTH OF KENTUCKY**
**SUPREME COURT OF KENTUCKY**

CASE NO. 2024-SC-371-D
ON DISCRETIONARY REVIEW FROM COURT OF APPEALS
NO. 2023-CA-1242
APPEAL FROM MCRACKEN CIRCUIT COURT
CIVIL ACTION NO. 19-CI-00261
HON. JOSEPH ROARK

MERCY REGIONAL EMERGENCY MEDICAL SYSTEM, LLC; and SCOTT HENDRICKSON

APPELLANTS

V.

THE ESTATE OF JOSHUA ADAM FUSON, by administratrixes, AMY HICKMAN & DAFFENY SNEED FUSON, VICTORIA PAIGE FUSON, and AUBREY GRACE FUSON, a minor by and through her mother and next of friend AMY HICKMAN

APPELLEES

# REPLY BRIEF FOR APPELLANTS

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## CERTIFICATE OF SERVICE

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# ARGUMENT

## I. The McCracken Circuit Court correctly held that the Minor Children's prosecution of their claims against some defendants waived any tolling of the statute of limitations.

Tolling of a minor's claims is removed when a minor's claim is timely brought by a next friend, guardian, or other representative. This is consistent with Kentucky case law and the purpose of tolling: to protect minors who cannot assert their own legal rights, not to extend limitations periods where those rights have already been pursued. The language of KRS 413.170(1) is clear and straightforward that tolling does not apply where, as here, the disability is lifted.

"It is true that infancy will give rise to suspension of the limitation of time in which the action may be brought; but this right is one of statutory origin, KRS 413.170, and is an exception to the statutes of limitation." *Galloway v. City of Winchester*, 184 S.W.2d 890, 892 (Ky. 1944) (emphasis added). As early as 1822, the Supreme Court expressed that despite the "greater latitude" towards minor litigants, the conduct of a guardian could bind a minor, recognizing "it would be still more difficult to find a case, where, when they had done their duty rightfully, under one set of circumstances, that court has, upon their request, advised judicially, that they could undo what they had done, and perform it in another way." *Allen's Ex'rs v. Allen's Heirs*, 12 Ky. 94, 97-98, 2 Litt. 94 (Ky. 1822).

Early in Kentucky jurisprudence, the Court recognized that "[i]n this state we have adopted the rule that the statute of limitations is not controlling except in the absence of intervening equities." *Martin v. Elkhorn Coal Corp.*, 13 S.W.2d 780, 781 (Ky. 1929) (emphasis added). Further, the Court has recognized that

> Parents and custodians of persons under disability necessarily have the liberty to exercise or forego many options affecting the rights and welfare of the child or ward. A next friend may file suit for an infant, waive trial by jury, and lose the case, all without let or hindrance.
> *Fann v. McGuffey*, 534 S.W.2d 770, 778 (Ky. 1975).

The Court's holding in *Azmat as Next Friend of Azmat v. Bauer* that a next friend cannot proceed pro se on behalf of a real party in interest is also distinguishable from the facts of the present case, and thus not applicable. *Azmat*, 588 S.W.3d 441, 452 (Ky. 2018). Here, the Court recognized that it was "abundantly clear that everyone involved in this litigation was educated and versed in the law - everyone except" the minor and the next of friend. *Id.* at 452. Dissimilar from the next of friend and minor in *Azmat*, V.P.F. and

A.G.F. were adequately represented by counsel who is well-educated and -versed in the law.

No injustice has been made to V.P.F. or A.G.F., as demonstrated by their ability to aggressively prosecute and settle other claims. MREMS and Hendrickson do not argue that V.P.F. or A.G.F.'s ability to bring suit lifted their disability and started the running of their statute of limitations, but rather, their litigation and prosecution of claims removed their disability and triggered the statute of limitations. Throughout this litigation, V.P.F. or A.G.F.'s counsel aggressively, thoroughly and diligently prosecuted their claims. The procedural history of this lawsuit confirms V.P.F. and A.G.F. had the capacity and ability to initiate, prosecute multiple other claims to favorable resolution; thus, their claims were not tolled by KRS 413.170(1).

The federal district court's holding in *Bradford v. Bracken County* is not instructive to the disposition of this appeal. *Bradford*, 767 F.Supp.2d 740 (E.D. Ky. 2011). There, the district court relied on two unreported decisions of a different federal district court: *Martin v. Celadon Trucking Services, Inc.*, 5:05 CV 00101 R, 2006 WL 181864 (W.D. Ky. Jan. 17, 2006) and *T.S. v. Doe*, No. 5:10–cv–217, 2010 WL 3941868 (E.D. Ky. Oct. 6, 2010).

The facts before the federal district court in the unreported decision of *Martin v. Celadon Trucking Services, Inc.*, are distinguishable from this matter. *Martin*, 2006 WL 181864. In *Martin*, the defendants argued the statute of limitations for a minor's personal injury claims from a motor vehicle accident began to run once a guardian was appointed for the minor. *Id.* at *1. The district court held that the appointment of the guardian did not remove the disability but made "no finding as to when the plaintiff's disability was removed …." *Id.* at *2.

Dissimilar from this case, the *Martin* guardian was appointed in 2001, and waited until 2005, to file a lawsuit against the defendants. Here, V.P.F. and A.G.F. filed their lawsuit naming multiple parties, conducted significant discovery, and thoroughly litigated their claims before adding MREMS and Hendrickson as parties to the instant lawsuit. V.P.F. and A.G.F.'s initiation and prosecution of their claims against MREMS and Hendrickson removed their disability.

Like the *Bradford* court, the federal district court in *T.S. v. Doe*, relied on the opinion in *Martin* to find that a minor's claims were not barred by the statute of limitations when the minor added two new parties one month after the filing of the original complaint, 2010 WL 3941868, at *2–4 (E.D. Ky. Oct. 6, 2010). V.P.F. and A.G.F.

waited 3 years and 4 months after they filed their original complaint to add MREMS and Hendrickson as parties to this lawsuit. During this period, V.P.F. and A.G.F. conducted extensive discovery, unlike the plaintiff in *T.S.*

The federal district court's decision in *Sandmann* is not persuasive because the federal district court recognized that the procedural history in the *Sandman* action was not similar to the procedural history in *Tallman*. *Sandmann v. Gannett Co., Inc.*, 22-CV-26WOB-CJS, 2021 WL 78486, at *3 (E.D. Ky. Jan. 8, 2021) ("However, a reading of this decision reveals that the Court considered the litigation before it to be highly unusual, and it noted that its ruling was made in light of 'the procedural history of the case.' Again, no such history exists here.") (emphasis added). Here, the procedural history is dissimilar from *Sandmann* and more similar to *Tallman*.

## II. The prosecution of claims by a next of friend removes a minor's disability for all the minor's claims stemming from the same factual nucleus.

V.P.F. and A.G.F. waived the arguments in section II of their Appellee Brief by failing to raise these arguments before the trial court or Kentucky Court of Appeals. *Skaggs v. Assad, By and Through Assad*, 712 S.W.2d 947, 950 (Ky. 1986); RAP 32(A)(4). V.P.F. and A.G.F. further waived these arguments by failing to file a cross-motion for discretionary review. *Perry v. Williamson*, 824 S.W.2d 869, 871 (Ky. 1992); see also RAP 46(A).

MREMS and Hendrickson do not seek to expand KRS 413.170 beyond its text. The statute plainly states tolling ends once the disability is removed. It was the minors' prosecution and settlement of claims, not their mother's role as next friend, that removed the tolling protection. By actively litigating claims from the same factual nucleus, V.P.F. and A.G.F. showed they were not legally disabled from pursuing related actions.

The General Assembly's inclusion of language suspending tolling for minors in workers' compensation claims is not determinative to this appeal. Kentucky Revised Statute 342.210 provides that the statute of limitations for a minor's claim for workers' compensation benefits of a parent is not stayed where the minor has a committee, guardian, next of friend, or other person authorized to claim compensation for the minor. Kentucky Revised Statute 413.170 provides an action is tolled where the plaintiff is subject to a disability, like infancy. "Time shall not commence against a party under legal disability until removal of his disability." *Pete v. Anderson*, 413 S.W.3d 291, 295 (Ky. 2013) (citing KRS 413.245). Consequently KRS 342.210 states that in a workers'

compensation action, a minor's claims are not tolled by infancy where a next of friend is authorized to claim compensation for the minor, but KRS 413.170 states that claims in civil actions are tolled while the plaintiff is disabled. Because the General Assembly intended for tolling to be suspended under two different scenarios, the General Assembly's failure to include the limiting language of KRS 342.210 in KRS 413.170 does not demonstrate that the General Assembly intended for tolling to continue where, as here, the legal disability of infancy is removed by the prosecution of a minor's claims via a next of friend, the statute of limitations is not tolled.

## III. Kentucky public policy supports suspending tolling for all of a minor's claims based on the same operative facts where, as here, a minor child lawfully prosecutes their claims.

V.P.F. and A.G.F. waived the arguments in section III of their Appellee Brief by failing to raise these arguments before the trial court or Kentucky Court of Appeals. *Skaggs*, 712 S.W.2d at 950; RAP 32(A)(4). V.P.F. and A.G.F. further waived these arguments by failing to file a cross-motion for discretionary review. *Perry*, 824 S.W.2d at 871; see also RAP 46(A).

Under V.P.F. and A.G.F.'s view they could still file a lawsuit against unnamed employees of the jail, jail healthcare providers, police officers, other MREMS employees, and others, barring any release and settlement agreement. Numerous, separate lawsuits could arise from the same transactional nucleus of fact, which would hinder judicial efficiency, fairness, credibility, and finality in litigation. Such "[p]iecemeal litigation and splitting of causes of actions are highly disfavored" by Kentucky Courts. *Arnold v. Patterson*, 229 S.W.3d 923, 925 (Ky. App. 2007) (citing *Whittaker v. Cecil*, 69 S.W.3d 69, 72 (Ky.2002)); see also *Foley v. Commonwealth*, 306 S.W.3d 28, 32 (Ky. 2010); *Jeep Trucking, Inc. v. Howard*, 891 S.W.2d 78, 79 (Ky. 1995). Kentucky courts "adhere to the principle that piecemeal litigation is contrary to the policy of the courts." *Wenk v. Ruby*, 412 S.W.2d 247, 249 (Ky. 1967). "In the absence of a legislative decree, courts may adopt and apply public policy principles." *Giuliani v. Guiler*, 951 S.W.2d 318, 321 (Ky. 1997), as modified on denial of reh'g (Oct. 2, 1997) (citing *Owens v. Clemons*, 408 S.W.2d 642 (Ky. 1966)). For this reason, public policy supports suspending tolling of a minor's claims where the minor has initiated litigation via a next friend and/or guardian.

Kentucky courts aim to resolve all disputes between parties in a single action whenever possible. Preventing piecemeal litigation reduces the burden on judicial resources and avoids unnecessary repetition of proceedings. *Coomer v. CSX Transp., Inc.*,

319 S.W.3d 366, 371 (Ky. 2010). Allowing multiple, separate lawsuits based on the same operative facts would waste judicial time and resources because separate courts would convene separate hearings to hear the same facts and legal issues, and time spent on re-litigated matters could be better spent on new or unresolved cases. Moreover, different judges in separate proceedings might reach conflicting conclusions on the same factual or legal issues. This occurrence undermines the integrity and predictability of the legal system, increases court workloads (and appeals), and threatens consistency in the administration of justice. A rule requiring infants to bring all causes of action stemming from the same factual nucleus in one action would reduce these concerns, promote judicial economy, enhance coherent decision-making, and ensure timely, comprehensive resolution of disputes.

Public policy also favors avoiding inconsistent judgments. "[I]nconsistent judicial decisions shall not be made on the same state of facts…." *Floyd Cnty. Bd. of Ed. v. Layne*, 474 S.W.2d 397, 399 (Ky. 1971) (citation omitted). Multiple lawsuits on the same facts could result in contradictory outcomes, undermining the credibility and consistency of the legal system. Should this case have proceeded to a favorable jury verdict at the trial level, A.G.F. could then file a lawsuit against other MREMS employees who provided care and treatment to Fuson or who hired, trained, supervised, and retained employees who provided care and treatment to Fuson. Said another way, a jury could return a favorable result for MREMS and Hendrickson in one lawsuit, and a different jury return an unfavorable result for other MREMS employees in another lawsuit.

Similarly, in a birth-related medical negligence case, a minor could sue an OB/GYN but not other involved providers—such as the hospital, nurses, or physicians' groups. If the statute of limitations remains tolled despite prior prosecution, the minor could later file separate lawsuits against each provider, even after an unfavorable verdict against the OB/GYN. This could result in numerous suits arising from the same incident. Similar risks exist in multi-vehicle accidents or product liability cases involving multiple entities. Such fragmented litigation invites inconsistent judgments, burdens courts, and undermines finality. Requiring all claims from the same factual nucleus to be brought together safeguards judicial efficiency, verdict integrity, and fairness by preventing piecemeal, duplicative litigation.

Requiring infants to bring all causes of action grounded in the same set of underlying events in one action would prevent endless litigation over the same facts, ensuring that a matter, once decided, is conclusively resolved. Litigants and the public

deserve certainty and closure once a judgment has been rendered. See, e.g., *Rogers Group, Inc. v. Masterson*, 175 S.W.3d 630, 636 (Ky. App. 2005) (recognizing "there is generally opposition to piecemeal litigation, the policy reasons behind that are to prevent a defendant from being repeatedly hauled into court over the same or similar issues by the same person or persons"). Kentucky "has a policy of requiring all causes of action to be settled at one time …." *Carroll v. Owens-Corning Fiberglas Corp.*, 37 S.W.3d 699, 701 (Ky. 2000), as amended (Aug. 24, 2000), as modified on denial of reh'g (Mar. 22, 2001). "The rule that issues which have been once litigated cannot be the subject matter of a later action is not only salutary, but necessary to the speedy and efficient administration of justice." *Yeoman v. Commonwealth, Health Policy Bd.*, 983 S.W.2d 459, 465 (Ky. 1998).

Tolling the statute of limitations during V.P.F. and A.G.F.'s claims against dismissed defendants would undermine public policy favoring finality. Final judgments provide certainty for litigants and those relying on precedent, prevent repetitive litigation of the same issues, and stop non-prevailing parties from repeatedly attacking the same ruling. Allowing such challenges risks eroding confidence in the legal system by leaving issues unresolved.

Allowing V.P.F. and A.G.F. to add MREMS and Hendrickson as parties to the lawsuit 3 years and 4 months after it was filed is unfair and prejudicial to MREMS and Hendrickson. "[F]airness to the defendant and sound judicial administration require that at some point litigation over a particular controversy be brought to a final conclusion." *Kirchner v. Riherd*, 702 S.W.2d 33, 35 (Ky. 1985). In balancing fairness to the defendant, "[i]t is of the highest necessity that this right of minors shall be protected, but a court of equity will not aid the slothful, after such disability is removed, when to do so will work a hardship and injustice upon an innocent third party." *Martin*, 13 S.W.2d at 782. In general, innocent defendants like MREMS and Hendrickson should not be subjected to multiple, separate lawsuits by a single plaintiff arising from the same set of facts or transactions brought years after the statute of limitations expired.

V.P.F. and A.G.F. were allowed to build a case against MREMS and Hendrickson via discovery against the dismissed defendants, all the while MREMS and Hendrickson were not parties to the lawsuit and did not have the opportunity to build a defense before MREMS and Hendrickson were added as parties. V.P.F. and A.G.F. were able to subpoena records from MREMS and Hendrickson and depose Hendrickson and a representative of MREMS before adding MREMS and Hendrickson as parties to this lawsuit. Requiring

minor plaintiffs to bring all claims stemming from the same factual nucleus in one action, deters strategic or manipulative litigation. Minor plaintiffs may game the system by brining minor claims first, gauging outcomes, and then escalating with more claims and lawsuits. The prohibition protects defendants from cost, time, and uncertainty of defending repeated lawsuits.

The Court's holding that a minor's prosecution would not strip minors of their rights without their knowledge. While public policy in favor of judicial economy must be balanced with a party's opportunity to litigate their case, *Waldridge v. Homeservices of Kentucky, Inc.*, 384 S.W.3d 165, 169 (Ky. App. 2011), MREMS and Hendrickson's requested relief would not inhibit a minor's ability to litigate their case. MREMS and Hendrickson request a limited holding that when a minor initiates prosecution via a next friend or guardian, the statute of limitations for all claims arising from the same transaction or occurrence starts to run against the minor due to the prosecution of their claims and continues to run so long as the minor diligently pursues their claims via a next friend and retained counsel.

Next friends and guardians may compromise claims of minors via their acts or omissions, without the minor's knowledge. The Court has held that "[a] next friend may file suit for an infant, waive trial by jury, and lose the case, all without let or hindrance." *Fann*, 534 S.W.2d at 778. Infancy also does not toll the notice provision of KRS 413.170. *Id.* at fn. 43 ("So may an infant's personal injury claim against a city be lost by failure of someone to give the [written notice of rejection with an employer] required by KRS 413.170." (citing *Galloway v. City of Winchester*, 184 S.W.2d 890 (1944))). An infant "may by laches lose his right before it is barred by the statute of limitations." *Martin*, 13 S.W.2d at 782. These holdings illustrate that, even with the great latitude extended towards minors, the public policy in favor of minors has its limits.

In this case, the numerous policy concerns against tolling in situations where a minor prosecutes their claims outweigh any public policy interest in protecting the rights of minors. "A cause of action accrues when a party has the right and capacity to sue[.]" *Creson v. Scott*, 275 S.W.2d 406, 408 (Ky. 1955). MREMS and Hendrickson are entitled to a just and timely defense. *Azmat*, 588 S.W.3d at 452. As demonstrated by the procedural history, V.P.F. and A.G.F. had the right and capacity to sue, did in fact sue with favorable resolution, and as a result, public policy does not warrant tolling of the statute of limitations applicable to their claims for loss of parental consortium.

## IV. MREMS and Hendrickson did not obstruct or obfuscate V.P.F. and A.G.F.'s ability to bring suit against MREMS and Hendrickson.

V.P.F. and A.G.F. waived the argument that Hendrickson or MREMS concealed their allegedly negligent involvement with Fuson by failing to raise this argument before the trial court and by only raising it in his reply brief to the Kentucky Court of Appeals appellate panel. *Estate of Fuson by Hickman*, 2024 WL 3381440, at *3 (citing *Skaggs*, 712 S.W.2d at 950; RAP 32(A)(4); *Seeger Enterprises, Inc. v. Town & Country Bank and Tr. Company*, 518 S.W.3d 791, 796 (Ky. App. 2017)). V.P.F. and A.G.F. further waived these arguments by failing to file a cross-motion for discretionary review. *Perry*, 824 S.W.2d at 871; see also RAP 46(A). Additionally, the appellate court found this argument to be without merit. *Estate of Fuson by Hickman*, 2024 WL 3381440, at *3; see also Skinner Dep. at pp. 47; Bryant Dep. at pp. 133-34.

The procedural record confirms this appeal does not involve an unsophisticated party who lacked the ability to assert their legal rights or discover possible defendants. V.P.F. and A.G.F. identified MREMS and its employees as potential litigants before filing suit, and V.P.F. and A.G.F. are represented by very good lawyers, particularly ones seasoned in trial practice, with years of experience and countless hours in courtrooms across the Commonwealth.

Importantly, the late joinder of MREMS and Hendrickson, over three years after the initiation of this action and following extensive discovery, results in substantial and incurable prejudice. MREMS and Hendrickson were denied the opportunity to participate in critical discovery, shape the evidentiary record, or influence prior case strategy and rulings. Further, V.P.F. and A.G.F. engaged in discovery against MREMS and Hendrickson when they were not parties. The delay in adding MREMS and Hendrickson to this litigation coupled with the prejudice to these defendants has severely impaired MREMS and Hendrickson's ability to mount an effective defense and exposed it to potential estoppel from decisions made without its input. Requiring MREMS and Hendrickson to proceed under these circumstances offends fundamental principles of fairness and due process, and warrants dismissal of the claims against them.

# CONCLUSION

Mercy Regional EMS and Scott Hendrickson respectfully request that the Supreme Court of Kentucky reverse the opinion of the Kentucky Court of Appeals with respect to the

tolling of the Minor Children's claims and affirm the ruling rendered by the McCracken County Circuit Court.

Respectfully submitted,

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**WORD-COUNT CERTIFICATE**

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By: /s/ James A. Sigler